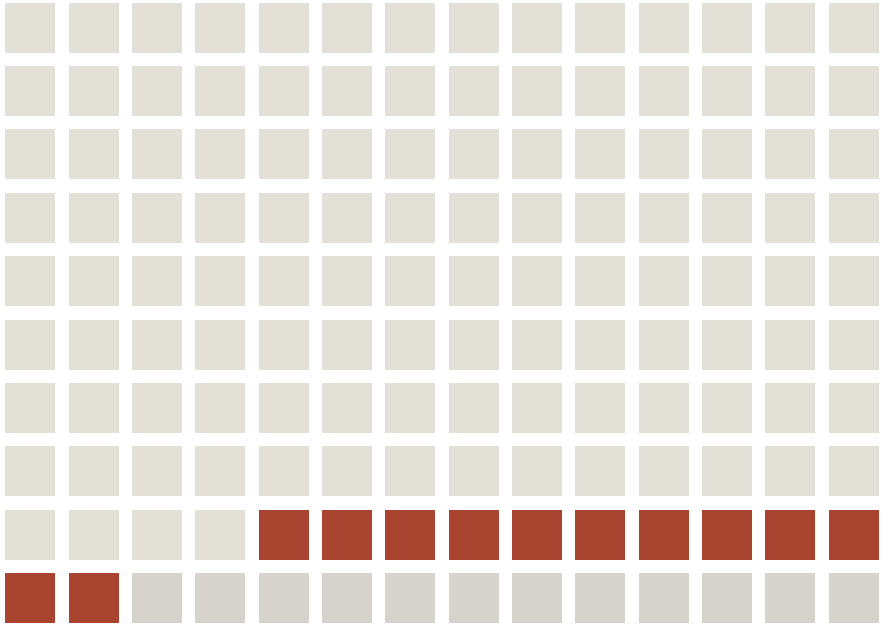
ATHENA ELECTION OBSERVATORY

BAYELSA 2023

FORENSIC POST-ELECTION AUDIT

Governorship election · 11 November 2023
Athena Post-Election Audit Framework (APAF) — totals-based variant



2,244 polling units · 105 wards · 8 LGAs · 1,056,862 registered voters

BVAS → EC8A → EC8B → EC8C → EC8D → EC8E

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THE ANSWER

What did we find?

90.5%

of assessable polling units complied with BVAS accreditation (within the ±5 band). 1,854 of 2,049.

APEA ELECTION INTEGRITY ASSESSMENT

Adequate Integrity — Improvement Required

Provisional pending APAF threshold sign-off. Process integrity; outcome materiality is reported separately.

2,244	2,049	1,854	195	195
Polling units audited	**Assessable**	**Compliant**	**Non-compliant**	**Excluded**
100% coverage	91.3% of all PUs	90.5% of assessable	9.5% of assessable	8.7% of all PUs

APEA is an electoral integrity audit, not a legal determination. It does not determine the legal validity of an election, return or certificate of return.

WHAT DOES THAT MEAN?

Most polling units passed. The failures remained — and were not evenly spread.

1,854

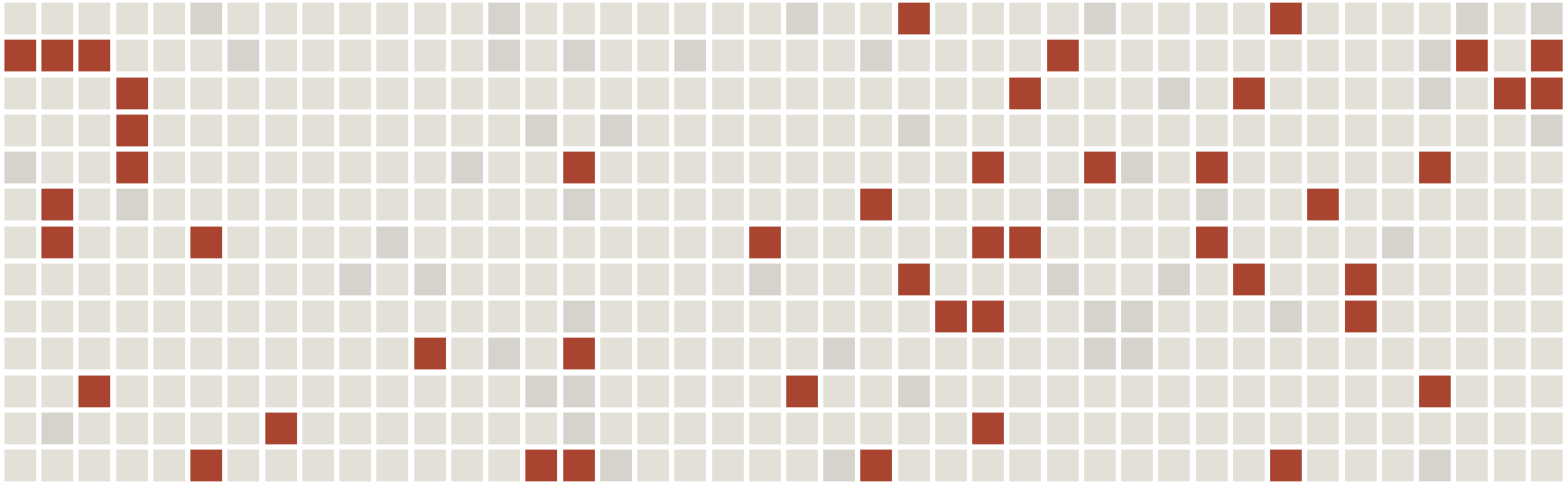
Compliant polling units

195

Non-compliant (9.5% of assessable)

195

Excluded — no usable result



Compliant ■ Non-compliant ■ Excluded

Each cell is one of 2,244 polling units. Compliance is high overall, but the non-compliant units are concentrated — Nembe alone holds 57% of them. The next slide shows where.

OUTCOME MATERIALITY

Did the identified problems approach the declared outcome?

+65,088

Declared margin · PDP 175,196 — APC 110,108

73,598

Over-voting magnitude — votes recorded over BVAS accreditation in the non-compliant units.

113% of the margin — exceeds it

"The quantitative scale of the defects exceeds the declared margin — a materiality flag, not a legal determination."

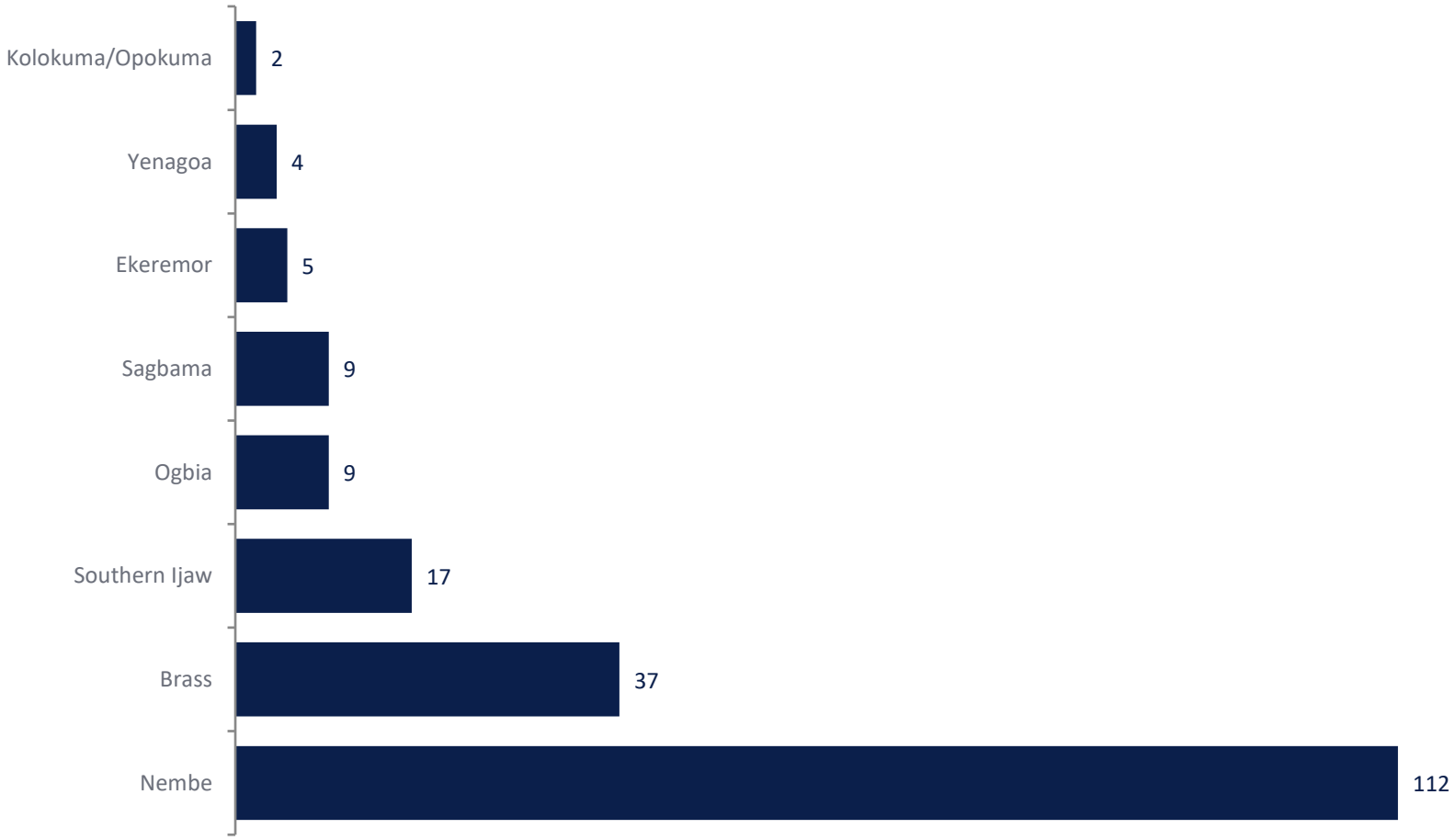
STRESS TEST — COMPLIANT PUs ONLY

PDP 164,467
APC 65,269
LP 547
SDP 4

PDP still leads decisively on the compliant polling units — the declared winner is not displaced.

Integrity and outcome are reported separately; the legal effect of any non-compliance is for the Tribunal or Court.

Non-compliance was concentrated — Nembe led.



195

non-compliant polling units across 8 LGAs

Nembe holds 112 of them (57%). Scale and concentration travel together.

Four dimensions, each with one principal finding.

01

Technology & Evidence

98.1%

EC8A results uploaded to IReV

- 96.7% record legibility
- BVAS the fixed accreditation anchor
- EC8A carries the PU-level result

02

Polling-Unit Compliance

90.5%

1,854 / 2,049 compliant

- 195 non-compliant (±5 band)
- 180 transferred + 15 inflation
- 57% in Nembe

03

Collation Integrity

27 / 105

wards flagged EC8B → EC8C

- 23 discrepancy + 4 missing form
- LGA & state totals reconcile
- over-voting favoured APC

04

Outcome Materiality

113%

defects as share of the margin

- Margin exceeded by magnitude
- compliant lead: PDP
- integrity & outcome kept separate

We did not sample the election. We reconstructed it.

2,244

polling units, each carried through the full form chain from BVAS accreditation to the state result.

105	wards (EC8C)
8	LGAs (EC8D)
1	state result (EC8E)
4	parties traced

FOUR QUESTIONS, ANSWERED FROM INEC'S OWN RECORDS

Discrepancies in the chain, totals that reconcile — and a margin the discrepancies do not approach.

8 / 8

Do the declared totals reconcile through the chain?

All 8 LGA total-vote figures reconcile to the declaration (EC8C → EC8D → EC8E, within ±5). Party-level reconciliation is not assessed in the totals-based variant.

364 → 213

Was there statutory over-voting?

364 of 2,244 PUs exceeded BVAS accreditation at EC8A; 213 remained over-voted at EC8B (s.51(2), zero tolerance).

27 / 105

Did the collation chain preserve polling-unit results?

27 wards (25.7%) fail EC8B → EC8C total reconciliation (23 discrepancy + 4 missing form); EC8C → EC8D → EC8E totals reconcile.

113%

Do the identified discrepancies approach the declared margin?

The over-voting (73,598) equals 113% of the 65,088 margin — it exceeds it under APEA's quantitative materiality test.

The net movement was small. The movement underneath was not.

Party votes recorded in the non-compliant polling units



APC was arithmetically favoured.

Of the 77,247 party votes recorded in the non-compliant units, 70,033 (91%) were APC's.

An arithmetic observation of where the over-voting sat — not a finding of intent.

Where the chain is weakest: the EC8B → EC8C ward step.

27 / 105

wards flagged — 23 with a genuine discrepancy (summed PU total differs from the certified ward total by > ±5) and 4 with a missing ward-collation form.

The chain still closes at the top.

EC8C → EC8D reconciles at the LGA totals, and EC8D → EC8E reconciles to the state result within ±5. A declaration can balance at the top while the discrepancies are already inside it — at the ward step.

See the evidence yourself.

Brass · OKPOAMA · ISELE - AMA OPEN SPACE (06-01-04-005)

BVAS accreditation	**48**
EC8A total votes cast	**1,093**
EC8B total votes cast	**1,093**
Over-voting (TVC − BVAS)	**+1,045**
Classification	**Transferred over-voting**
Carried into EC8B	**Yes — not cancelled**

1,093 votes were cast against 48 accredited voters and carried through to the ward collation without cancellation. Reported as recorded by INEC; APEA records the discrepancy, not intent.

RECOMMENDATIONS

Make every change between forms explainable, documented and auditable.

01	**Activate BVAS electronic collation**	Deploy e-collation so results are recorded electronically before the manual EC8A, and the accreditation ceiling travels with the result.
02	**Upload the EC8B ward form to IReV**	Publishing ward collation makes the weakest step in the chain visible and reduces the room for undocumented change.
03	**Statutory declaration of correctness on every form**	Bind the presiding and collation officers to the figures entered, with liability for falsification.
04	**Visibility and accountability of officers**	Commend officers who recorded only BVAS-compliant results; prosecute those who recorded votes exceeding accreditation.
05	**Independent audit and ballot scanning**	Appoint election auditors and deploy ballot-paper scanners within the s.65 review window; implement the Justice Uwais reforms.

EVERY ELECTION LEAVES AN EVIDENCE TRAIL.

APEA follows it — from accreditation to declaration.

Bayelsa 2023 · Athena Post-Election Audit · Totals-based variant

APEA findings are analytical and evidential. They do not determine the legal validity of an election, return or certificate of return. Legal consequences are matters for the appropriate Tribunal or Court.

LAYER 3

The Audit.

Definitions, methodology, the pillar detail and the full per-LGA and per-ward evidence — the basis for every figure in this report.

APPENDIX A

Standard of proof — what this audit is, and is not.

- APEA is an independent forensic audit of INEC's own certified records. It reconstructs the evidence chain; it does not re-run the election.
- Its findings are analytical and evidential. They do not determine the legal validity of an election, return or certificate of return — those are for the appropriate Tribunal or Court.
- Figures are reported as INEC recorded them. Where a change between forms is identified, APEA records what changed, where and by how much — not intent.

Integrity assessment and outcome materiality are reported separately: a large defect does not by itself establish that the outcome was threatened, and a large margin does not make a poorly administered election sound.

APPENDIX B

Key terms.

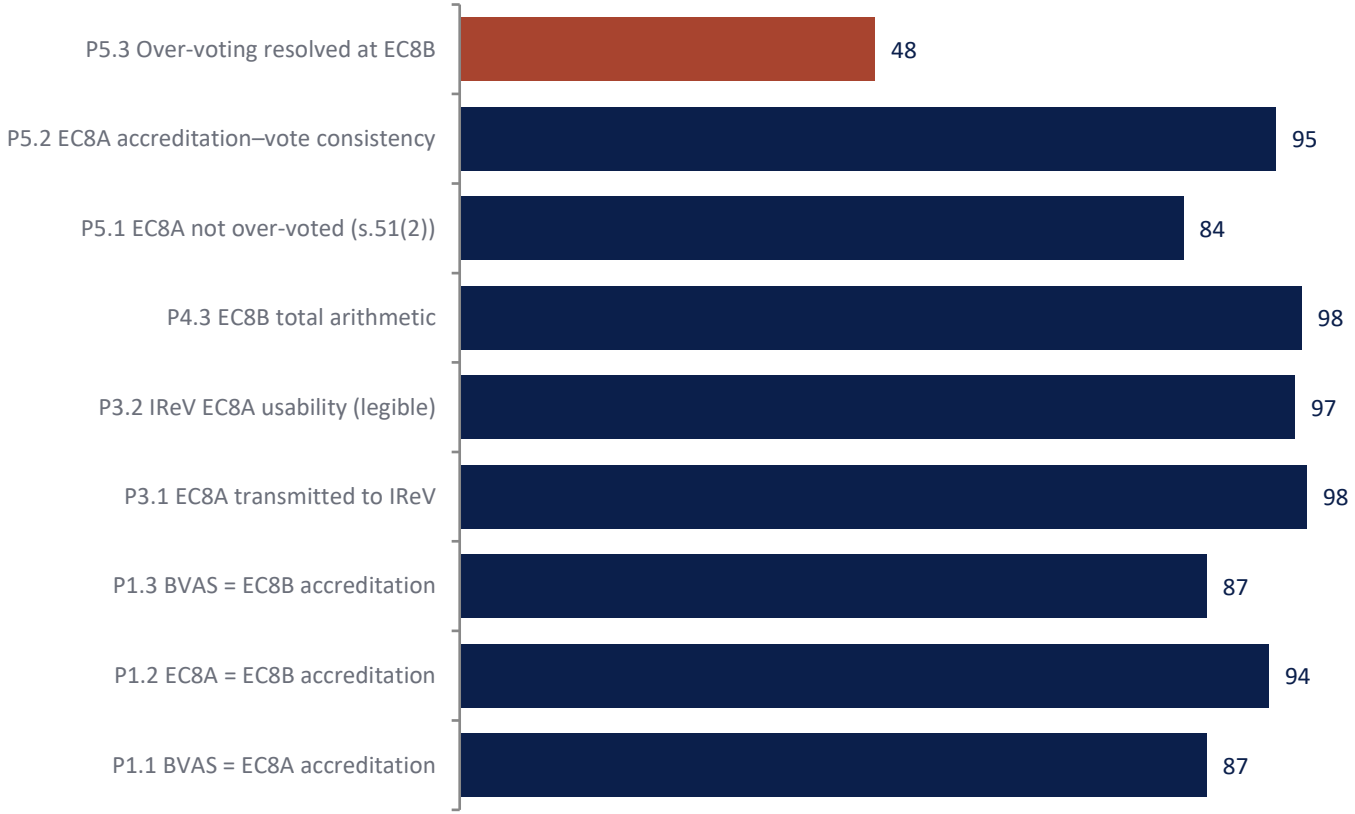
Term	Definition
BVAS accreditation	Accredited voters recorded by BVAS — the legal ceiling on votes cast (Electoral Act 2022, s.51(2)).
Compliant PU	Assessable PU whose EC8B total votes cast is within ±5 of BVAS accreditation, including under-voting.
Non-compliant PU	Assessable PU over-voted beyond ±5: transferred over-voting or unexplained inflation.
Excluded / indeterminate	PU with no usable EC8B result (total votes cast = 0): cancelled, no record, disrupted.
Transferred over-voting	Over-voted at EC8A and still over-voted at EC8B — carried into the result.
Unexplained inflation	Clean at EC8A but pushed over BVAS at EC8B.
Unexplained reduction	EC8B total cut below the EC8A total beyond ±5 — reported separately.
IReV	INEC Result Viewing Portal — carries the EC8A polling-unit result image.

APPENDIX C

Methodology & statistical note.

	Note
Variant	Totals-based. Bayelsa captured PU-level votes for APC, LP, PDP, SDP plus the totals; compliance, over-voting, under-voting, exclusion, inflation and materiality run off the totals and are complete.
Tolerance	±5 is the clerical-error allowance, applied to the compliance band and to reconciliation; the statutory over-voting verdict (s.51(2)) is zero-tolerance and reported separately.
Direction	The party composition of votes in the non-compliant units is reported as an arithmetic observation; per-party reconciliation requiring every party is marked Not assessed.
Standings	Party totals are recomputed on the compliant polling units only, with the constitutional 25% spread assessed per LGA (Appendix F).
Reproducibility	Every PU-level indicator carries a classification column on the analysed worksheet; counts, evidence tabs and standings are computed from those columns.

APAF criteria — totals-based application.



NOT ASSESSABLE (totals-based variant)

- P2.1/P2.2 Ballot accounting (no ballot columns)
- P4.1/P4.2 Party-vote = valid (top parties only)
- P4.4/P4.6 Party-vote reconciliation across levels
- P5.4 Party-vote alteration

Criteria computed from the APAF spec. Party-vote and ballot-accounting criteria are Not Assessable where the data was not captured, and are excluded from the denominator — never scored zero.

Direction of over-voting — the party arithmetically favoured.

Party	Votes in non-compliant PUs	Share
APC	70,033	90.7%
PDP	6,629	8.6%
LP	477	0.6%
SDP	108	0.1%

APC holds 70,033 of the 77,247 party votes in the non-compliant units.

A directional observation of where the over-voting sat, reported alongside — not merged into — the compliance verdict, with no finding of intent.

Constitutional spread on the compliant polling units.



8 / 8

LGAs where the declared winner (PDP) cleared 25% of the compliant-PU vote; two-thirds (6) are required.

The declared winner clears the spread (8 of 6 required) and leads on the compliant units — the requirement holds after the non-compliant units are set aside.

APPENDIX G

Coverage & limits.

WHAT IT CAN SUPPORT

- Compliance, over-voting, under-voting and exclusion from the totals
- The EC8B→EC8C→EC8D→EC8E collation reconciliation
- Outcome materiality and compliant-PU standings for the captured parties

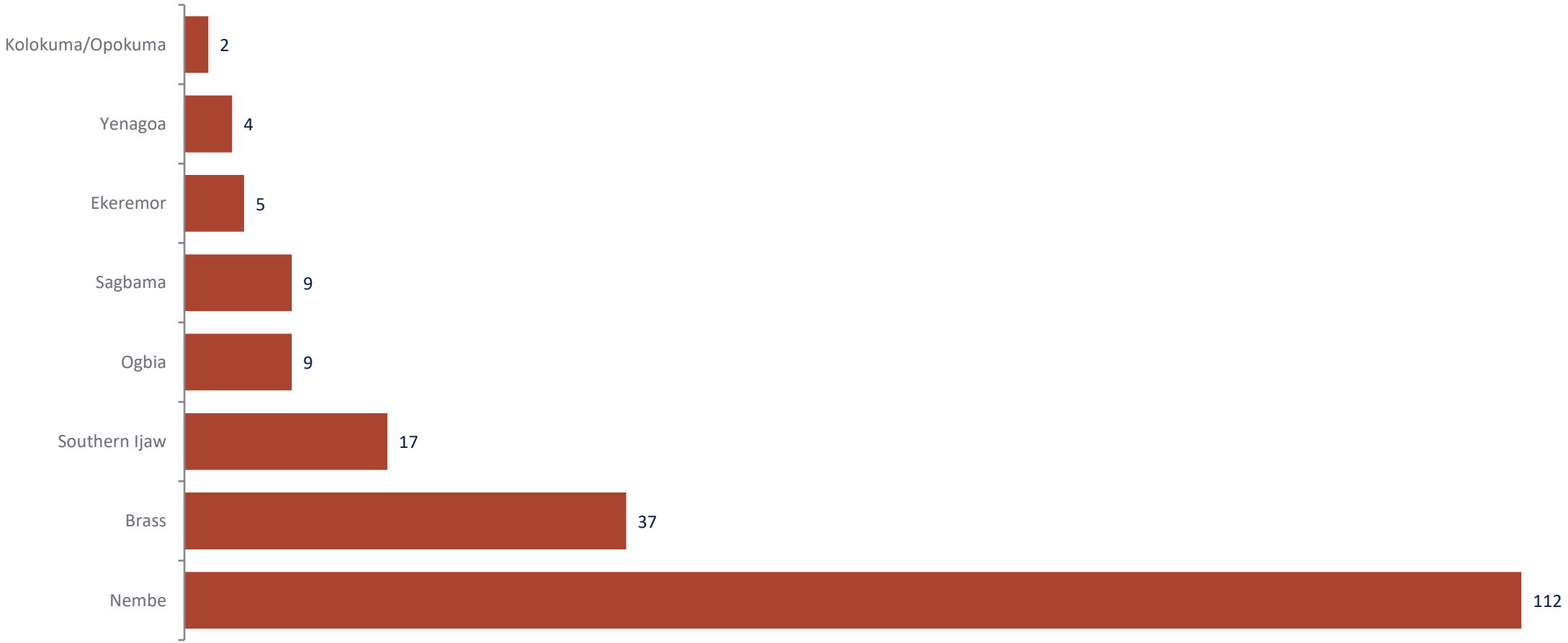
WHAT IT CANNOT

- Per-party reconciliation across every party (top parties captured only)
- A legal determination of validity or return
- Intent behind any recorded change

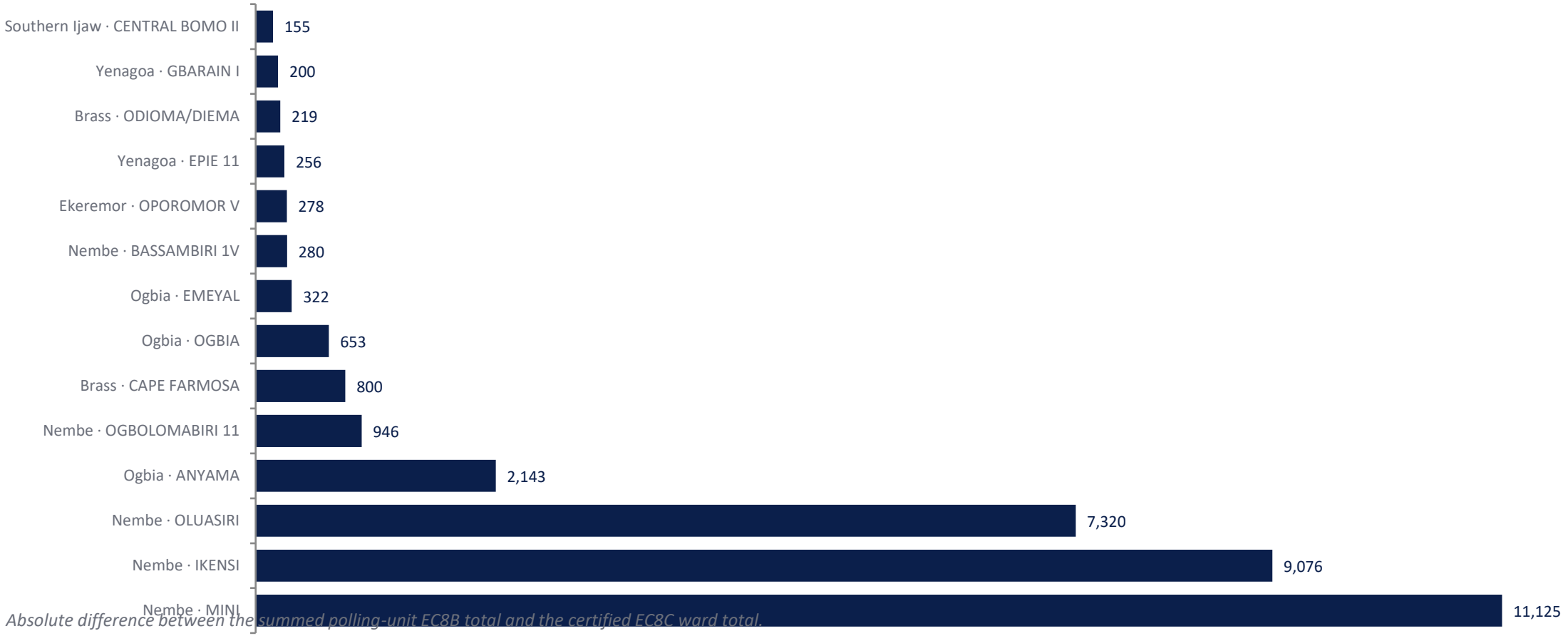
LIMITS ON THE RECORD

- 195 excluded PUs with no usable EC8B result
- 4 wards with no EC8C form (flagged, not a discrepancy)
- Source-form transcription errors logged in Appendix J

Non-compliant polling units by LGA.



Wards not reconciling EC8B → EC8C — top by magnitude (27 flagged).



Absolute difference between the summed polling-unit EC8B total and the certified EC8C ward total.

Every record we expected — and what we obtained.

Record	Expected	Obtained	Note
BVAS accreditation	2,244	2,244	Complete — the accreditation baseline
EC8A polling-unit result	2,244	2,244	98.1% uploaded to IReV
EC8B polling-unit result	2,244	2,049	195 with no usable result (excluded)
EC8C ward collation	105	105	4 ward forms absent
EC8D LGA collation	8	8	All LGA totals reconcile
EC8E state declaration	1	1	Reconciles to EC8D within ±5
Party votes	APC · LP · PDP · SDP	captured	Top parties only; minor parties N/A

Corrections & data-quality log.

Form	Item	Treatment
EC8B	195 excluded PUs	No usable result (TVC=0); reasons held in the evidence register.